

ELIZABETH II



1966 CHAPTER xxxi

An Act to empower the British Transport Docks Board to construct works and to acquire lands; to confer further powers on the Board; and for other purposes.

[9th August 1966]

WHEREAS by the Transport Act, 1962, the British Transport 1962 c. 46.
Docks Board (in this Act referred to as "the Board")
were established:

And whereas it is the duty of the Board under the Transport Act, 1962 (*inter alia*), to provide, to such extent as they may think expedient, port facilities at the harbours owned or managed by the Board, to have due regard to efficiency, economy and safety of operation as respects the services and facilities provided by them and to operate the harbours owned or managed by the Board:

And whereas it is expedient that the Board should be empowered to construct the works authorised by this Act and to acquire the lands referred to in this Act:

And whereas it is expedient that the other powers in this Act contained should be conferred upon the Board and that the other provisions in this Act contained should be enacted:

And whereas plans and sections showing the lines or situations and levels of the works to be constructed under the powers of this Act, and plans of the lands authorised to be acquired or used by this Act, and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands have been deposited

in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and with the clerks of the county councils of the several counties and the town clerks of the county boroughs within which the said works will be constructed or the said lands are situated, which plans, sections and book of reference are respectively referred to in this Act as the deposited plans, the deposited sections and the deposited book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

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| Short title. | 1. This Act may be cited as the British Transport Docks Act 1966. |
| Division of Act into Parts. | 2. This Act is divided into Parts as follows:—
Part I.—Preliminary.
Part II.—Lands.
Part III.—Works, etc.
Part IV.—Protective provisions.
Part V.—Miscellaneous and general. |
| Interpretation. | 3.—(1) In this Act, unless there be something in the subject or context repugnant to such construction, the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith have in relation to the relative subject-matter the same respective meanings and— |
| 1847 c. 27. | “ the Act of 1847 ” means the Harbours, Docks and Piers Clauses Act, 1847; |
| 1964 c. xxxviii. | “ the Act of 1964 ” means the British Transport Docks Act 1964;
“ the Board ” means the British Transport Docks Board;
“ the Board's harbours ” has the meaning assigned to that expression in section 48 (Interpretation of Part V) of the Act of 1964;
“ the branch docks ” means the areas of water each of which is bounded on three sides by Work No. 1 when constructed; |

- “ the channel at Lowestoft ” means the channel between the Outer Harbour and the Inner Harbour in the borough of Lowestoft in the county of East Suffolk;
- “ the conservancy board ” means the Humber Conservancy Board;
- “ enactment ” means any enactment, whether public, general or local, and includes any order, byelaw, rule, regulation, scheme or other instrument having effect by virtue of an enactment;
- “ the first scheduled agreement ” means the agreement between the Board and the mayor, aldermen and citizens of the city of Southampton set forth in Schedule 1 to this Act;
- “ the harbour board ” means the Southampton Harbour Board;
- “ hover vehicle ” means a vehicle, however propelled, designed to be supported on a cushion of air;
- “ the Hull works ” means Works Nos. 4 and 5 and any works constructed for the purposes of or in connection therewith and includes those works as extended, enlarged, altered, replaced or relaid under subsection (2) of section 8 (Power to make works) of this Act;
- “ hydrofoil vessel ” means a vessel, however propelled, designed to be supported on foils;
- “ land ” includes any estate or interest in land and land covered by water;
- “ the level of high water ” means the level of mean high-water springs;
- “ the limits of deviation ” means the limits of deviation shown on the deposited plans;
- “ the Minister ” means the Minister of Transport;
- “ port ” means the port of Southampton as defined in section 5 (Defining the port) of the Southampton Harbour Act, 1887; 1887 c. lii.
- “ the second scheduled agreement ” means the agreement between the Board and Liquefied Pressure Gases Ancillary Services Limited set forth in Schedule 2 to this Act;
- “ the Southampton works ” means Works Nos. 1 and 2 and any works constructed for the purposes of or in connection therewith and includes those works as extended, enlarged, altered, replaced or relaid under subsection (2) of section 8 (Power to make works) of this Act;
- “ tidal work ” means so much of any work authorised by this Act as is on, under or over tidal waters or tidal lands below the level of high water;

PART I
—cont.

“ the tribunal ” means the Lands Tribunal;

“ Trinity House ” means the corporation of Trinity House of Deptford Strond;

“ undertaking ” means the undertaking of the Board as authorised from time to time;

“ vessel ” includes any ship, boat, raft or craft of every class or description, howsoever navigated or propelled and a hover vehicle and a hydrofoil vessel;

“ the works ” means the works authorised by Part III (Works, etc.) of this Act.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment, including this Act.

(3) All areas, distances and lengths stated in any description of works, powers or lands shall be construed as if the words “ or thereabouts ” were inserted after each such area, distance and length.

(4) Unless the context otherwise requires, any reference in this Act to a work identified by the number of such work shall be construed as a reference to the work of that number authorised by this Act.

Incorporation
of Acts.

4.—(1) The following enactments, so far as the same are applicable to the purposes and are not inconsistent with the provisions of this Act, are hereby incorporated with this Act:—

1845 c. 18.

(a) the Lands Clauses Acts (except sections 92, 127 to 133, 150 and 151 of the Lands Clauses Consolidation Act, 1845):

Provided that the bond required by section 85 of the Lands Clauses Consolidation Act, 1845, shall be sufficient without the addition of the sureties mentioned in that section;

1845 c. 20.

(b) the provisions of the Railways Clauses Consolidation Act, 1845, with respect to the temporary occupation of lands near the railway during the construction thereof and with respect to mines lying under or near the railway:

Provided that—

(i) for the purposes of the said incorporated provisions with respect to the temporary occupation of lands near the railway during the construction thereof Work No. 3 shall be deemed to be the railway and the centre line of that work as shown on the deposited plans shall be deemed to be the centre of the railway;

(ii) for the purposes of the said incorporated provisions with respect to mines lying under or near the railway the works authorised by this Act shall be deemed to be the railway and for the purposes of section 78 of the said Act of 1845 (as amended by the Mines (Working Facilities and Support) Act, 1923) 1923 c. 20. in so far as it relates to the works the area of protection shall as regards mines and minerals lying within 565 feet of the surface of the ground or the bed of the river Test or of the river Humber or of the channel at Lowestoft (as the case may be) be 400 feet and as regards mines and minerals lying at a greater depth than 565 feet below the said surface the area of protection shall be increased by 60 feet for every 100 feet or part thereof by which the mines and minerals lie deeper below the said surface than 565 feet;

- (c) the provisions of the Act of 1847 (except sections 6 to 9, 11 to 13, 16 to 23, 25, 26, 49, 50, 79, 80, 84, 85 to 90 94 and 95):

Provided that—

(i) the expression “ the harbour dock or pier ” where used in the said incorporated provisions means in relation to the Southampton works, Work No. 1 and the branch docks, in relation to the Hull works, those works and in relation to Work No. 6, that work;

(ii) the expression “ the harbour master ” where used in the said incorporated provisions means in relation to the Southampton works, the Board’s dock master at Southampton, in relation to the Hull works, the dock master of the Board’s King George Dock, Hull, and in relation to Work No. 6, the Board’s harbour master at Lowestoft;

(iii) the meaning of the word “ vessel ” as defined in this Act shall be substituted for the meaning assigned to that word by section 3 of the Act of 1847;

(iv) section 52 of the Act of 1847 shall extend to empower the harbour master to give directions prohibiting the mooring of vessels in any particular part or parts of Work No. 1 and the branch docks;

(v) section 53 of the Act of 1847 shall not be construed to require the harbour master to serve a notice in writing of his directions upon the master of a vessel but such directions may be given orally or otherwise communicated to such master:

PART I
—cont.

Provided that a notice which is not in writing shall not be deemed to be sufficient unless in the opinion of the court before whom any case may be heard it was not reasonably practicable to serve a written notice on the master of the vessel;

(vi) sections 77 and 78 of the Act of 1847, as so incorporated, shall not have effect in relation to the Southampton works.

(2) In the construction of the enactments so incorporated with this Act the expression “ special Act ” shall be read as a reference to this Act, the expression “ company ” shall mean the Board and the expression “ minerals ” shall include sand and gravel.

PART II

LANDS

Power to
acquire
lands.

5.—(1) Subject to the provisions of this Act, the Board may enter upon, take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the purposes of the works or for any purpose connected with or ancillary to the undertaking and for the reclamation of land in accordance with the provisions of this Act.

(2) The powers of the Board for the compulsory acquisition of land under this section shall cease after the expiration of three years from 31st December, 1966:

Provided that the Minister may by order extend the period for the exercise of the powers of the Board for the compulsory purchase of land under this section.

(3) An order under subsection (2) of this section shall be subject to special parliamentary procedure.

(4) Subject to the provisions of this Act, the Board may enter upon, use and appropriate so much of the subsoil and under-surface of any public street, road, footway or place delineated on the deposited plans and described in the deposited book of reference as shall be necessary for the purposes of the works without being required to purchase the same or any easement therein or thereunder or to make any payment therefor.

Powers to
owners and
lessees to give
notice as to
purchase of
land.

6. If the Minister by order made under subsection (2) of the last foregoing section extends the period for the exercise of the powers of the Board for the compulsory purchase of land, the following provisions shall apply after the coming into operation of that order:—

(1) In this section—

“ the land ” means any land which is for the time being authorised to be acquired compulsorily by this Act;

“lessee” means a lessee under a lease having a period of not less than twenty-one years to run at the date of his notice under paragraph (2) of this section:

PART II
—cont.

- (2) If any person being the owner or lessee of any of the land shall give notice in writing to the Board of his desire that his interest in any part of the land specified in the notice shall be acquired as soon as may be the Board shall within a period of three months after the receipt of such notice—

(a) enter into a contract with such person for the acquisition of his interest in the land or such part thereof as may be specified in the contract; or

(b) serve a notice to treat for the compulsory acquisition of the interest of such person in the land specified in his notice or in such part thereof as may be required by the Board; or

(c) serve on such person notice in writing of their intention not to proceed with the purchase of the interest of such person in the land specified in his notice:

- (3) Where notice is given under the last foregoing paragraph by an owner or lessee of land specified in the notice, then—

(a) if the Board—

(i) fail to comply with that paragraph; or

(ii) withdraw in pursuance of any statutory provision a notice to treat served on him in compliance with sub-paragraph (b) of that paragraph; or

(iii) serve notice on him in compliance with sub-paragraph (c) of that paragraph;

the powers conferred by this Act for the compulsory purchase of his interest in the land so specified shall cease;

(b) if his interest in part only of the land so specified is acquired in pursuance of a contract or notice to treat under sub-paragraphs (a) or (b) of that paragraph the powers conferred by this Act for the compulsory purchase of his interest in the remainder of the land so specified shall cease.

PART II
—*cont.*

Incorporation
of provisions
of Act of
1964 relating
to lands.

7. The following provisions of the Act of 1964 are incorporated with and form part of this Part of this Act:—

- Section 6 (Correction of errors in deposited plans and book of reference);
- Section 7 (Power to acquire easements only);
- Section 8 (Acquisition of part only of certain properties);
- Section 9 (Power to expedite entry);
- Section 10 (Power to enter for survey or valuation);
- Section 11 (Disregard of recent improvements and interests);
- Section 12 (Extinction of private rights of way);
- Section 13 (Grant of easements by persons under disability):

Provided that the provisions of the said section 11 of the Act of 1964, as so incorporated, shall have effect as if for the reference therein to 5th December, 1963, there was substituted a reference to 5th December, 1965.

PART III

WORKS, ETC.

Power to
make works.

8.—(1) Subject to the provisions of this Act, the Board may, in the lines and situations and upon the lands delineated on the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections, make and maintain the works hereinafter described with all necessary works and conveniences connected therewith:—

In the city and county of Southampton and in the parishes of Eling and Marchwood in the rural district of New Forest in the county of Hampshire—

(Western
Dock works
at
Southampton.)

Work No. 1 A new quay or quays, including berths for vessels, comprising an area of 458 acres extending into the river Test from the north bank of the said river between a point in the city and county of Southampton on the river wall 133 yards west of the entrance to the King George V Graving Dock and a point in the said city and county on the river wall of Redbridge Wharf 320 yards south-east of the viaduct carrying the railway over the Redbridge Channel of the said river;

Work No. 2 A diversion of the river Test on the south-east and south, south-west and west sides of Work

No. 1, including a deepening and alteration of the channels of the said river and the formation of a new south bank, commencing at a point 967 yards north-east of Marchwood Jetty and terminating at the western end of Work No. 1 at the termination of that work:

PART III
—cont.

In the city and county of Southampton—

Work No. 3 A bridge and roadworks over the railway between Redbridge and Millbrook stations commencing in First Avenue at a point 157 yards south-west of its junction with Third Avenue and terminating on Work No. 1 at a point 267 yards north-east of Redbridge Point:

In the city and county of Kingston upon Hull—

Work No. 4 An extension of the Board's King George Dock comprising a new South East Arm 29 acres in extent, including berths for vessels, comprising an area bounded on the north by a line drawn in an easterly direction along the line of the existing quay wall of No. 8 Quay and continuing for a distance of 650 yards, on the east by a line drawn in a south-westerly direction for a distance of 173 yards from the termination of the last-mentioned line, on the south by a line drawn in a westerly direction parallel to the first-mentioned line for a distance of 710 yards from the termination of the last-mentioned line, and on the west by a line drawn in a north-westerly direction from the termination of the last-mentioned line for a distance of 233 yards and thence in a northerly direction for a distance of 16 yards to the point of commencement of the first-mentioned line;

(Hull (King George Dock) Extension.)

Work No. 5 An embankment commencing by a junction with the existing river wall on the north bank of the river Humber at a point 760 yards measured in a south-easterly direction along the said wall from the entrance lock to King George Dock, proceeding in a south-easterly direction along the line of the said wall for a distance of 380 yards to the termination of the existing half-tide wall and thence proceeding in a north-easterly direction for a distance of 657 yards and there terminating by a junction with the existing river wall:

In the borough of Lowestoft in the county of East Suffolk—

Work No. 6 A widening on the south side of the channel connecting the Outer Harbour and the Inner Harbour at Lowestoft Swing Bridge, including the demolition

(Lowestoft Swing Bridge —Channel Widening.)

PART III
—cont.

of the existing retaining wall and the construction of a new retaining wall between a point on the existing retaining wall measured 23 yards westwards along that wall from the west side of Lowestoft Swing Bridge and a point on that wall measured 56 yards eastwards along that wall from the east side of Lowestoft Swing Bridge.

(2) Subject to the provisions of this Act the Board may within the limits of deviation from time to time extend, enlarge, alter, replace or relay temporarily or permanently the works.

(3) The Board may fill in and reclaim from the foreshore and bed of the river Test and of the river Humber and of the channel at Lowestoft as widened under the powers of this Act, and may hold and use as part of the undertaking so much of the foreshore and bed of the said rivers and channel as is situated within the limits of deviation and is—

- (i) in the case of Work No. 1, landward of the line of the quay or quays forming part of Work No. 1;
- (ii) in the case of Works Nos. 5 and 6, landward of the said works.

Subsidiary
works.

9.—(1) Subject to the provisions of this Act, the Board for the purposes of or in connection with the works may in addition to such works—

- (a) execute, place and keep, either permanently or temporarily, all such caissons, cofferdams, piles, piers, quays, abutments, embankments, bridges, cuts, channels, approaches, ways, access works, wharves, walls, fences, drains, sewers, pipeways, tunnels, fenders, mooring posts, bollards, booms, dolphins, pontoons, stagings, warehouses, sheds, pumping and sluicing works, lifts, cranes, winches, capstans, gantries, conveyors, staithes, tips, railways, tramways, junctions, sidings, turntables, stairs, subways, buildings and other works and conveniences as they may find necessary or expedient for or in connection with the construction, maintenance or use of the works;
- (b) make junctions with, and may alter the line or level of, any street or way interfered with by, or contiguous to, the works and may alter and interfere with any steps, walls, gateways, railings, passages, pipes and pavements and may execute any works for the protection of any adjoining land or building;
- (c) temporarily or permanently use, strengthen, widen, improve, alter or otherwise interfere with drains, sewers, intake or other channels, submarine cables,

telegraphic, telephonic, water and other pipes, lines, wires, works and apparatus (all of which are hereinafter in this section referred to as “apparatus”) and streets and railways, providing where possible a proper substitute before interrupting the passage of sewage or water in or through any apparatus or the traffic on any such street;

(d) raise, sink or otherwise alter the level of any land:

Provided that the powers conferred on the Board by this subsection in relation to the works shall not be exercised outside the limits of deviation for those works, and shall not apply to any apparatus to which section 44 (For protection of certain statutory undertakers) of this Act applies.

(2) Any paving, metalling or materials in, on or under any street altered or otherwise interfered with by the Board under the powers of this section and rendered unnecessary and any apparatus rendered unnecessary by the substitution of other apparatus therefor shall vest in the Board and the substituted apparatus shall be under the same jurisdiction, care, management and direction as the existing apparatus for which it may be so substituted.

(3) In the exercise of the powers conferred by this section, the Board shall cause as little detriment and inconvenience as the circumstances permit to any person and shall make reasonable compensation for any damage caused to any person by the exercise of such powers.

(4) (a) Before executing any works under paragraph (c) of subsection (1) of this section for the purposes of or in connection with the works affecting any apparatus (not being a drain, sewer or pipe belonging to or repairable by the local authority), the Board shall submit to the appropriate authority sufficient plans of the proposed works for their reasonable approval and shall not commence the works until such plans have been approved in writing by the appropriate authority or, if not so approved, until they have been settled by arbitration:

Provided that if within twenty-eight days after such plans have been furnished to the appropriate authority, they shall not have intimated their disapproval thereof and the grounds of the disapproval they shall be deemed to have approved them.

(b) The Board shall execute such works in accordance with such plans as may be submitted to and approved by the appropriate authority or, if such approval be refused, as may be settled by arbitration and all such works shall be executed to the reasonable satisfaction of the appropriate authority and the Board shall at all times afford to the representative of the appropriate authority access for the purpose of inspecting such works.

PART III
—cont.

(c) The Board shall give reasonable notice to the appropriate authority of the time at which such works are intended to be executed and shall comply with such reasonable conditions as the appropriate authority may require.

(d) Any dispute or difference which may arise between the appropriate authority and the Board under this subsection (other than one relating to disputed compensation) shall be settled by arbitration.

1961 c. 33. (e) Any question of disputed compensation payable under the provisions of this section shall be determined under and in accordance with the Land Compensation Act, 1961.

(f) In this subsection—

“the appropriate authority” means in relation to any apparatus the authority to whom it belongs or by whom it is repairable;

“local authority” means the council of a city, borough or rural district; and

“plans” includes sections and particulars.

1950 c. 39. (5) In this section “street” has the same meaning as in the Public Utilities Street Works Act, 1950.

Power to deviate.

10. Subject to the provisions of this Act in the execution of any, or any part, of the works the Board may deviate from the lines or situations thereof shown on the deposited plans to the extent of the limits of deviation and may deviate vertically from the levels shown on the deposited sections to any extent not exceeding 10 feet upwards and to such extent downwards as may be found necessary or convenient.

Power to execute temporary works on railways.

11.—(1) The Board may for the purpose of, and during the execution of, the works over or under any railway, erect, place or execute and maintain upon, over or under such railway all such temporary structures, erections, works, apparatus and appliances as may be necessary or convenient and as will not prevent the safe use of such railway or interfere to any greater extent than is reasonably necessary with the traffic thereon.

(2) Any question or dispute arising under this section shall be determined by arbitration.

Period for completion of works.

12. If Works Nos. 1 and 2 are not completed before 1st January, 1987, then on that day the powers by this Act granted to the Board for making and completing those works shall cease, except as to so much thereof as is then completed.

Power to Board to stop up bridleway, footpath, hard, etc.

13. The Board may stop up and extinguish all rights of way over so much of any bridleway, footpath, jetty or hard in the city and county of Southampton or the parish of Eling in the

PART III
—cont.

rural district of New Forest in the county of Hampshire or the parish of Marchwood in the said rural district as may be situate within the limits of deviation and thereupon all rights over and along so much of such bridleway, footpath, jetty or hard shall be extinguished and the Board may appropriate and use for the purposes of the undertaking the site of the portion of any such bridleway, footpath, jetty or hard so stopped up so far as it is bounded on both sides by lands of the Board:

Provided that no portion of any bridleway, footpath, jetty or hard shall be stopped up under the powers of this section until the Board are in possession of all the lands abutting on each side of such portion except so far as the owners, lessees and occupiers of those lands may otherwise agree.

14.—(1) As from the commencement of the construction of the Hull works the Board may stop up and extinguish all rights of way and diversion over so much of the portion of the existing footpath in the city and county of Kingston upon Hull as lies between the points marked “A” and “C” on the deposited plans as they think fit, and thereupon all rights of way over or along the said portion of footpath shall be extinguished.

(2) On or before the completion of the Hull works the Board shall complete and open for public use a substituted footpath between the points marked “A”, “B” and “C” on the deposited plans.

(3) The provisions of subsection (1) of section 22 (For benefit and protection of Hull Corporation) of the Hull Joint Dock Act, 1899, and of section 11 (For benefit and protection of Hull Corporation) of the Hull Joint Dock Act, 1906, shall apply to the substituted footpath as they apply to the portion of footpath to be stopped up.

15.—(1) The Board may, from time to time, deepen, dredge, scour, cleanse, alter and improve the bed, shores and channels for the time being of the river Test and blast any rock within the limits of deviation relating to the Southampton works or any part or parts thereof and any materials taken up or collected in the course of any such operations shall be the property of the Board and may be used, sold, removed, deposited or otherwise disposed of as the Board may think fit:

Provided that no such materials shall be deposited below the level of high water except in such places and in accordance with such restrictions or regulations as may be approved or prescribed by the Board of Trade nor shall such materials be deposited without the consent of the harbour board in any place within the port or on any lands adjacent to any part of the port:

PART III
—*cont.*

Provided also that the Board shall not without the consent of the harbour board deepen or dredge the river Test to a depth of more than 35 feet below mean low water springs.

(2) In giving any consent under subsection (1) of this section the harbour board may impose such reasonable conditions as they consider necessary to ensure that materials deposited on any lands referred to in that subsection shall be retained thereon.

Power to
dredge at
Lowestoft.

16. The Board may, from time to time, deepen, dredge, scour, cleanse, alter and improve the bed, shores and channels of the channel at Lowestoft as widened on the south side under the powers of this Act, for the purpose of affording uninterrupted means of access thereto and may use, appropriate or dispose of the materials from time to time dredged by them from the channel at Lowestoft:

Provided that no such materials shall be deposited below the level of high water except in such places and in accordance with such restrictions or regulations as may be approved or prescribed by the Board of Trade.

Works to
form part
of under-
taking, etc.
1899 c. ccxlii.

17. The works shall for all purposes form part of the undertaking and the Hull works shall be deemed to form part of the dock authorised by section 4 (Power to make new dock and works at Hull) of the Hull Joint Dock Act, 1899:

Provided that nothing in this section shall affect the jurisdiction and authority of the harbour board over the river Test as diverted and enlarged by Work No. 2.

Hull works
to be within
city of
Kingston
upon Hull.

18. So much of the Hull works as is outside the city and county of Kingston upon Hull shall be deemed to be within the said city and county.

Limits of
dock master's
jurisdiction at
Southampton.

19. The limits within which the powers of the dock master may be exercised under and subject to the provisions of the Act of 1847, as incorporated with this Act, shall extend—

(a) to include the branch docks; and

(b) to a distance of twice the width of any vessel approaching, lying at or departing from Work No. 1 other than the branch docks in every direction from Work No. 1 as from time to time existing;

and nothing contained in this section shall interfere with the jurisdiction of the harbour board or of their harbour master.

Limits of
harbour
master's
jurisdiction
at Lowestoft.

20. The limits within which the powers of the harbour master may be exercised under and subject to the provisions of the Act of 1847, as incorporated with this Act, shall extend to the channel at Lowestoft as widened on the south side under the powers of this Act.

PART III

—cont.

21.—(1) A tidal work shall not be constructed, extended, enlarged, altered, replaced or relaid except in accordance with plans and sections approved by the Board of Trade and subject to any conditions and restrictions imposed by the Board of Trade before the work is begun.

Tidal works not to be executed without approval of Board of Trade.

(2) If a tidal work is constructed, extended, enlarged, altered, replaced or relaid in contravention of this section or of any condition or restriction imposed under this section—

(a) the Board of Trade may by notice in writing require the Board at their own expense to remove the tidal work or any part thereof and restore the site thereof to its former condition; and if, on the expiration of thirty days from the date when the notice is served upon the Board they have failed to comply with the requirements of the notice, the Board of Trade may execute the works specified in the notice; or

(b) if it appears to the Board of Trade urgently necessary so to do, they may themselves remove the tidal work or part of it and restore the site to its former condition;

and any expenditure incurred by the Board of Trade in so doing shall be recoverable from the Board as a simple contract debt.

22.—(1) In case of injury to or destruction or decay of a tidal work or any part thereof the Board shall forthwith notify the appropriate authority and shall lay down such buoys, exhibit such lights and take such other steps for preventing danger to navigation as the appropriate authority shall from time to time direct.

Provision against danger to navigation.

(2) If the Board fail to notify the appropriate authority as required by this section or to comply in any respect with a direction given under this section, they shall be liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

(3) In this section “the appropriate authority” means in relation to—

- (i) Works Nos. 1 and 2, and the works for the purposes of or connected therewith, the harbour board;
- (ii) Works Nos. 4 and 5 and the works for the purposes of or connected therewith, the conservancy board; and
- (iii) Work No. 6 and the works for the purposes of or connected therewith, Trinity House.

PART III
—cont.

Abatement
of works
abandoned or
decayed.

23.—(1) Where a tidal work is abandoned, or suffered to fall into decay, the Board of Trade may by notice in writing require the Board at their own expense either to repair and restore the work or any part thereof, or to remove the work and restore the site thereof to its former condition, to such an extent and within such limits as the Board of Trade think proper.

(2) Where a work authorised by this Act and consisting partly of a tidal work and partly of works on or over land above the level of high water is abandoned or suffered to fall into decay and that part of the work on or over land above the level of high water is in such condition as to interfere or to cause reasonable apprehension that it may interfere with the right of navigation or other public rights over the foreshore, the Board of Trade may include that part of the work, or any portion thereof, in any notice under this section.

(3) If, on the expiration of thirty days from the date when a notice under this section is served upon the Board they have failed to comply with the requirements of the notice, the Board of Trade may execute the works specified in the notice and any expenditure incurred by them in so doing shall be recoverable from the Board as a simple contract debt.

Survey of
tidal works.

24. The Board of Trade may at any time if they deem it expedient order a survey and examination of a tidal work or of the site upon which it is proposed to construct the work and any expenditure incurred by the Board of Trade in any such survey and examination shall be recoverable from the Board as a simple contract debt.

Permanent
lights on
tidal works.

25.—(1) After the completion of a tidal work the Board shall at the outer extremity thereof exhibit every night from sunset to sunrise such lights, if any, and take such other steps for the prevention of danger to navigation as the appropriate authority shall from time to time direct.

(2) If the Board fail to comply in any respect with a direction given under this section they shall be liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

(3) In this section “the appropriate authority” means in relation to—

- (i) Works Nos. 1 and 2, and the works for the purposes of or connected therewith, the harbour board;
- (ii) Works Nos. 4 and 5 and the works for the purposes of or connected therewith, the conservancy board; and
- (iii) Work No. 6 and the works for the purposes of or connected therewith, Trinity House.

26.—(1) The Board shall at or near a tidal work during the whole time of the construction, extension, enlargement, alteration, replacement or relaying thereof exhibit every night from sunset to sunrise such lights, if any, and take such other steps for the prevention of danger to navigation as the Board of Trade shall from time to time direct.

PART III
—cont.

Lights on
tidal works
during
construction.

(2) If the Board fail to comply in any respect with a direction given under this section they shall be liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

27. All byelaws, rules and regulations of the Board for the time being in force relating to their harbours—

Application
of byelaws
of Board.

(a) at Southampton, shall be deemed to apply to Work No. 1, the branch docks and any vessel lying at Work No. 1 and may be enforced by the Board accordingly;

(b) at Hull, shall be deemed to apply to the Hull works and may be enforced by the Board accordingly;

(c) at Lowestoft, shall be deemed to apply to Work No. 6 and may be enforced by the Board accordingly.

28. The following provisions of the Act of 1964 are incorporated with and form part of this Part of this Act:—

Incorporation
of provisions
of Act of
1964 relating
to works.

Section 20 (Temporary stoppage of roads and footpaths);

Section 21 (Power to make trial borings);

Section 30 (Fine for obstructing works).

PART IV

PROTECTIVE PROVISIONS

29. The following provisions of the Act of 1964 are incorporated with and form part of this Part of this Act:—

Incorporation
of protective
provisions of
Act of 1964.

Section 41 (For protection of Postmaster General);

Section 42 (For protection of Kingston upon Hull Corporation):

Provided that the provisions of the said section 41, as so incorporated, shall have effect as if in subsection (1) thereof for the words “section 15 (Subsidiary works at Port Talbot, Immingham and King’s Lynn) of this Act” there were substituted “section 9 (Subsidiary works) of the British Transport Docks Act 1966” and in subsection (2) thereof for the words “this Act” there were substituted the words “the British Transport Docks Act 1964”:

PART IV
—cont.

Provided also that the provisions of the said section 42, as so incorporated, shall have effect as if in paragraph (2) thereof for the words “ section 16 (Subsidiary works at Kingston upon Hull) of this Act ” there were substituted the words “ section 9 (Subsidiary works) of the British Transport Docks Act 1966 ”.

Crown rights.

30. Nothing in this Act affects prejudicially any estate, right, power, privilege or exemption of the Crown and in particular and without prejudice to the generality of the foregoing nothing herein authorises the Board to take, use or in any manner interfere with any portion of the shore or bed of the sea or of any river, channel, creek, bay or estuary, or any land or hereditaments or any rights of whatsoever description—

- (a) belonging to Her Majesty in right of Her Crown or under the management of the Crown Estate Commissioners, without the consent in writing of those commissioners on behalf of Her Majesty first had and obtained for that purpose; or
- (b) belonging to a government department or held in trust for Her Majesty for the purposes of a government department, without the consent of that government department.

For
protection
of
Postmaster
General.

31.—(1) The Board shall in constructing the new bridge comprised in Work No. 3 provide therein for the telegraphic lines of the Postmaster General accommodation as specified in subsection (2) of this section and shall also provide a means whereby the Postmaster General may have access to such telegraphic lines after the same have been laid without breaking up or interfering with the surface of the road and footway of the bridge.

(2) The accommodation to be provided in the said bridge in pursuance of subsection (1) of this section shall be sufficient for two ducts each having an external diameter of 5 inches or such other accommodation as the Board and the Postmaster General may agree.

(3) The said accommodation and means of access shall be provided in accordance with plans, sections and particulars to be previously submitted to and reasonably approved by the Postmaster General:

Provided that if within one month of the receipt of the said plans, sections and particulars the Postmaster General has not intimated to the Board his disapproval thereof or made any requirement with respect thereto he shall be deemed to have approved the same.

(4) The additional cost (if any) reasonably incurred by the Board in providing such accommodation and means of access

shall be repaid to the Board by the Postmaster General in a single payment or in such other manner as may be agreed between the Board and the Postmaster General:

PART IV
—cont.

Provided that the total amount so payable by the Postmaster General shall not exceed the difference between the actual cost incurred by the Board in constructing the said bridge and the cost which would have been incurred by them in constructing the bridge without the accommodation to be provided under this section.

(5) The Postmaster General shall before the Board complete the construction of the said bridge lay down all such ducts and supports as may be required for the purposes of the telegraphic lines in the bridge.

(6) Any question which may arise between the Postmaster General and the Board under this section shall be determined in manner provided by the Telegraph Act, 1878.

1878 c. 76.

32.—(1) Notwithstanding anything in section 9 (Subsidiary works) of this Act the Board shall not—

For further
protection of
Postmaster
General.

(i) use any telegraphic line belonging to or used by the Postmaster General; or

(ii) alter any such line except in accordance with and subject to the provisions of paragraphs (1) to (8) of section 7 of the Telegraph Act, 1878.

(2) In this section “alter” and “telegraphic line” have the same meanings as in the Telegraph Act, 1878.

33.—(1) The first scheduled agreement is hereby confirmed and made binding upon the parties thereto, and effect may and shall be given thereto accordingly, subject to such modifications (if any) as may from time to time be agreed between such parties.

Confirmation
of scheduled
agreements.

(2) The second scheduled agreement is hereby confirmed and made binding upon the parties thereto, and effect may and shall be given thereto accordingly, subject to such modifications (if any) as may from time to time be agreed between such parties.

34. Notwithstanding anything in this Act or shown on the deposited plans or the deposited sections, the following provisions for the protection of the mayor, aldermen and citizens of the city and county of the city of Southampton (in this section referred to as “the corporation”) shall, unless otherwise agreed in writing between the corporation and the Board, apply and have effect:—

For
protection of
Southampton
Corporation.

(1) In this section, unless the context otherwise requires—

“the authorised work” means that part of the bridge and roadworks (Work No. 3) as will impinge

PART IV
—cont.

on First Avenue, and includes any works executed or to be executed by the Board under the powers of section 9 (Subsidiary works) of this Act as will affect First Avenue and any other works executed or to be executed by the Board under the powers of the said section 9 within 50 feet of any property of the corporation;

“ the city ” means the city of Southampton;

“ the corporation’s land ” means such of the property numbered 9, 10, 11, 12, 13, 14 and 15 in the city on the deposited plans as is in the freehold ownership of the corporation;

“ First Avenue ” means the highway in the city known as First Avenue;

“ the sewage works ” means the sewage works of the corporation situate in the city to the south of the railway between Redbridge and Millbrook stations;

“ the signed plan ” means the plan signed in duplicate by Henry Arnold Chapman on behalf of the Board and by Alfred Norman Schofield on behalf of the corporation, one copy of which has been deposited with the town clerk of the city and the other with the Board;

“ plans ” means plans, sections, specifications and working drawings:

- (2) The bridge comprised in Work No. 3 shall be constructed with an overall width of not less than 67 feet and the road comprised in Work No. 3 shall include twin carriageways, each not less than 24 feet wide, throughout its length:
- (3) (a) Before commencing the authorised work the Board shall furnish to the corporation plans thereof for their reasonable approval;
- (b) The Board shall not commence the authorised work until the plans so required to be submitted to the corporation have been approved by the corporation or, if the corporation shall disapprove the plans, until the same shall have been settled by arbitration;
- (c) If the corporation do not within twenty-eight days of the submission to them of any plans pursuant to subparagraph (a) of this paragraph intimate to the Board their disapproval thereof, they shall be deemed to have approved of the same:

(4) The authorised work shall be constructed in accordance with such plans as may be approved by the corporation as aforesaid or settled by arbitration, and to the reasonable satisfaction of the corporation:

(5) The Board shall at all reasonable times during the construction of the authorised work afford to any officer duly authorised by the corporation access to the authorised work for the purpose of inspection:

(6) The Board shall be responsible for and make good to the corporation all costs, charges, damages and expenses which may be occasioned to the corporation by—

(a) the work of construction, or any failure of the authorised work;

(b) any act or omission of the Board, their contractors, agents, workmen or servants whilst engaged upon the authorised work;

and the Board shall effectually indemnify the corporation against all claims, demands, proceedings, costs, damages and expenses which may be made or taken against or recovered from or incurred by the corporation by reason of such construction, failure, act or omission as is referred to in sub-paragraphs (a) and (b) of this paragraph:

Provided that—

(i) nothing in this paragraph shall impose any liability on the Board with respect to any costs, charges, damages and expenses which may be attributable to the act, neglect or default of the corporation or their contractors or workmen;

(ii) the corporation shall give to the Board reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Board:

(7) (a) Any highway within the city occupied, broken up or interfered with by the Board under the powers of this Act shall be reinstated by the corporation at the cost of the Board;

(b) In carrying out the authorised work the Board shall not stop up permanently and in any event shall not interfere with First Avenue or the user thereof to a greater extent than is reasonably necessary for the execution of the authorised work:

(8) (a) The Board shall not under the powers of this Act acquire the whole or any part of the land coloured red on the signed plan;

PART IV
—cont.

- (b) The Board shall convey to the corporation the lands coloured green on the signed plan for such price or consideration and on such terms as may be agreed or, failing agreement, determined by the tribunal:
- (9) (a) In the carrying out of Work No. 1 the Board shall construct or provide at their own expense and to the corporation's reasonable satisfaction the works mentioned in sub-paragraph (b) of this paragraph together with all necessary works in accordance with such specifications as may be agreed or failing agreement determined by arbitration and in connection with the provision and permanent use thereof the Board shall grant to the corporation free of charge such facilities, easements and rights as the corporation shall reasonably require;
- (b) The works referred to in sub-paragraph (a) of this paragraph are—
- (i) a permanent berth capable of accommodating the barges used by the corporation for the removal of sludge from the sewage works at the date on which the construction of the said berth is commenced;
 - (ii) the diversion or extension of all sewers, pipes and outfalls used by the corporation at the passing of this Act for the discharge of sewage effluent or surface water from the sewage works;
 - (iii) the diversion or extension of the main or pipe used by the corporation at the passing of this Act for the conveyance of sludge from the sewage works to a point from which the sludge can be discharged into barges using the berth referred to in paragraph (i) of this sub-paragraph; and
 - (iv) such booster pumps and other works and machinery as are reasonably necessary for pumping sludge through the diverted or extended main or pipe referred to in paragraph (iii) of this sub-paragraph at a rate not exceeding the rate at which sludge can be discharged through that main or pipe;
- (c) The Board shall not interfere with or render less convenient the discharge of sewage effluent, surface water or sludge from the sewage works or the passage of barges to and from the existing jetty forming part of the corporation's land by means of the existing facilities until they shall have constructed or provided the necessary berth, sewers, pipes, mains, outfalls, pumps and other works and machinery in accordance with sub-paragraph (a) of this paragraph and thereafter the Board

shall not by the construction of Works Nos. 1 and 2 interfere with or render less convenient the continued discharge of sewage effluent, surface water and sludge and the passage and berthing of barges or in any way interfere with the full use and efficiency of the sewage works;

(d) The Board shall pay to the corporation a sum representing the capitalised cost of pumping sludge in quantities not exceeding by more than 41 per cent. those discharged by the corporation from the sewage works at the passing of this Act through the diverted or extended main or pipes referred to in subparagraphs (a) and (b) of this paragraph:

(10) Any difference arising between the Board and the corporation under this section (other than a difference as to the construction of this section) shall be settled by arbitration.

35. For the protection of the rural district council of New Forest For (in this section referred to as "the council") the following protection of provisions shall, unless otherwise agreed in writing between the New Forest Board and the council, apply and have effect:— Rural District Council.

(1) In this section unless the context otherwise requires—

"authorised work" means so much of the Southampton works as affects the outfall;

"plans" includes sections and, when reasonably required by the council, working drawings;

"the outfall" means the effluent discharge pipe of the council shown on the deposited plans as being within the enclosures numbered 2, 3 and 5 in the parish of Marchwood in the rural district of New Forest and includes that pipe as diverted or extended under this section:

(2) Notwithstanding anything in this Act or shown on the deposited plans the Board shall not without the consent of the council which is not to be unreasonably withheld—

(a) take compulsorily any part of the outfall; or

(b) alter or interfere with the outfall or any drains, pipes or other property of the council;

(3) (a) Before commencing to construct any authorised work the Board shall (except in an emergency) submit to the council for their reasonable approval plans thereof and of any temporary works. If the council do not within

PART IV
—cont.

twenty-eight days after the submission to them of any such plans signify to the Board in writing their approval or disapproval thereof they shall be deemed to have approved thereof;

- (b) No authorised work shall be constructed otherwise than in accordance with such plans as may have been approved (or deemed to have been approved) by the council or, if such approval be withheld, as may be settled by arbitration, and any such work shall be executed to the reasonable satisfaction of the council:

Provided that if any requirements of the council under this sub-paragraph conflict with any requirements of the Board of Trade under section 21 (Tidal works not to be executed without approval of Board of Trade) of this Act the latter requirements shall prevail:

- (4) If it is agreed between the Board and the council or in default of agreement determined by arbitration that, in consequence of the proposed or actual construction or execution of any authorised work, it is reasonably necessary to divert or extend the outfall or to carry out any works in relation to the outfall, the said diversion, extension or works (as the case may be) shall be carried out by the Board at their own expense, under the supervision (if given) and to the reasonable satisfaction of the council:
- (5) The provisions of paragraph (3) of this section shall apply to any extension or diversion of the outfall under paragraph (4) of this section as if the said extension or diversion were the construction of an authorised work:
- (6) Any extension or diversion of the outfall shall, when completed, vest in the council and shall for all purposes be deemed to have been constructed by them in pursuance of the powers conferred by section 15 of the Public Health Act, 1936:

1936 c. 49.

- (7) The Board shall at all times keep the council indemnified against all damages, losses, costs and expenses which they may sustain or be liable for or reasonably and properly incur by reason or in consequence of any injury or damage which may be caused or may result to the outfall or as a result of any interference in the operation thereof by or as a direct consequence of the construction of an authorised work or the exercise of any powers conferred by this Act:

Provided that the council shall give to the Board notice of any claim or demand made against them which

in the opinion of the council is a claim or demand for which the Board may be liable under this paragraph and no settlement or compromise of any such claim or demand shall be made without the consent in writing of the Board:

- (8) Any difference which may arise between the Board and the council under this section (other than a difference as to the meaning or construction of this section) shall be referred to and determined by arbitration.

36. For the protection of the British Railways Board (in this section referred to as “the railways board”), the following provisions shall, notwithstanding the provisions of section 11 (Power to execute temporary works on railways) of this Act, unless otherwise agreed in writing between the Board and the railways board, apply and have effect:—

- (1) In this section—

“railway property” means any railway of the railways board and any works connected therewith for the maintenance or operation of which the railways board are responsible, and includes any lands held or used by the railways board for the purposes of such railway or works;

“the specified works” means so much of the works as may be situated upon, across, under or over or within 50 feet of railway property, and includes the construction, maintenance and renewal of such works;

“the engineer” means an engineer to be appointed by the railways board;

“the Board’s engineer” means the Board’s chief docks engineer for the time being at Southampton;

“the signed plan” means the plan signed in duplicate by Henry Arnold Chapman on behalf of the Board and by John Parker on behalf of the railways board, one copy of which has been deposited at the offices of the Board and one copy at the offices of the railways board;

“plans” includes sections, drawings and specifications:

- (2) The Board shall not, under the powers of this Act, acquire compulsorily any of the railway property shown coloured pink, blue or green on the signed plan, but they may in accordance with the provisions of section 7 (Power to acquire easements only) of the Act of 1964 as incorporated with this Act acquire such easements and rights in

PART IV
—cont.

the railway property shown coloured blue and green on the signed plan, as they may reasonably require for the purposes of the exercise of the powers of this Act:

- (3) Notwithstanding anything shown on the deposited plans and the deposited sections, the Board shall so construct Work No. 3 as to provide—

(a) that it spans the two existing tracks of the Bournemouth to Southampton main line of the railways board and the site of the two pre-existing tracks adjacent thereto, and that the headway over these tracks shall not be less than 16 feet above the rail level of the said existing tracks, and that the square span shall be 55 feet;

(b) if so requested in writing by the railways board within one month of the passing of this Act or within such further period as the Board's engineer may agree on the lands coloured green on the signed plan, an opening with a headway of not less than 15 feet above rail level and with a square span of 27 feet, but so that the Board may be enabled to construct Work No. 3 within the limits of vertical deviation from the levels shown on the deposited sections authorised by section 10 (Power to deviate) of this Act; and

(c) if so requested in writing by the railways board within one month of the passing of this Act or within such further period as the Board's engineer may agree in a position to be specified by the railways board approximately midway between the points marked A and B on the signed plan, an opening with a headway of not less than 15 feet above rail level and with a square span of 38 feet, but so that the Board may be enabled to construct Work No. 3 within the limits of vertical deviation from the levels shown on the deposited sections authorised by section 10 (Power to deviate) of this Act:

- (4) The Board shall before commencing the specified works (other than works of maintenance or repair) furnish to the railways board proper and sufficient plans thereof for the reasonable approval of the engineer, and shall not commence the specified works until plans thereof have been approved in writing by the engineer or settled by arbitration:

Provided that—

(a) nothing in this section shall entitle the railways board to seek to vary the provisions of paragraph (3) of this section; and

(b) if within twenty-eight days after such plans have been furnished to the railways board the engineer shall not have intimated his disapproval thereof and the grounds of his disapproval, he shall be deemed to have approved the same:

- (5) Upon signifying his approval or disapproval of the said plans, the engineer may specify any protective works, whether temporary or permanent, which in his opinion should be carried out on property of the railways board before the commencement of the specified works in order reasonably to ensure the safety or stability of railway property and such protective works as may be reasonably necessary for those purposes shall be constructed by the Board or by the railways board, if the railways board so elect, with all reasonable dispatch, and the Board shall not commence the construction of the specified works until the engineer shall have notified the Board that the protective works have been completed:

Provided that in the event of the railways board not constructing or completing such protective works as they have elected to construct with reasonable dispatch, the Board may after giving twenty-eight days' notice to the engineer themselves construct or complete such works, and on the completion thereof may commence the construction of the specified works:

- (6) The Board shall give to the engineer twenty-eight days' notice of their intention to commence the construction of the specified works and except in emergency (when they shall give such notice as may be reasonably practicable) also of their intention to carry out any works for the repair or maintenance of the specified works:
- (7) The specified works shall, when commenced, be carried out with all reasonable dispatch in accordance with the plans approved or deemed to have been approved or settled as aforesaid and under the supervision (if given) and to the reasonable satisfaction of the engineer and in such manner as to cause as little damage to railway property as may be, and so far as is reasonably practicable so as not to interfere with or obstruct the free, uninterrupted and safe user of the railway or the traffic thereon and the use by passengers of railway property, and if any damage to railway property or any such interference or obstruction shall be caused or take place by reason of the specified works, the Board shall notwithstanding any such approval as aforesaid forthwith

PART IV
—cont.

make good such damage and shall pay to the railways board all reasonable expenses to which they may be put, and reasonable compensation for any loss which they may sustain by reason of any such damage, interference or obstruction other than damage, interference or obstruction caused by the neglect or default of the railways board, their servants or agents:

- (8) In the exercise of the powers of section 15 (Power to dredge at Southampton) of this Act, the Board shall ensure that no damage is caused to the railways board's Redbridge Wharf and that access by water to the wharf is not restricted, impaired or interfered with except so far as may be reasonably necessary during the construction of Work No. 2:
- (9) The Board shall at all times afford reasonable facilities to the engineer for access to the specified works during their construction and shall supply him with all such information as he may reasonably require with regard to the specified works or the method of construction thereof:
- (10) The railways board shall at all times afford reasonable facilities to the Board and their agents for access to any specified works carried out by the railways board under this section during their construction, and shall supply the Board with such information as they may reasonably require with regard to such works or the method of construction thereof:
- (11) If any alterations or additions, either permanent or temporary, to railway property shall be reasonably necessary during the construction of the specified works or during the period of twelve months after completion thereof in consequence of the construction of the specified works, such alterations and additions may be effected by the railways board after not less than twenty-eight days' notice (or in case of emergency, such notice as may be reasonably practicable) has been given to the Board, and the Board shall pay to the railways board the reasonable cost thereof, including in respect of permanent alterations and additions a capitalised sum representing the increased or additional cost of maintaining, working and, when necessary, renewing any such alterations or additions:

Provided that if the cost of maintaining, working or renewing railway property is reduced in consequence of any such alterations or additions, a capitalised sum,

representing such saving, may be set off against any sum payable by the Board to the railways board under this section:

PART IV
—cont.

- (12) The Board shall repay to the railways board all costs, charges and expenses reasonably incurred by the railways board—

(a) in constructing any protective works under the provisions of paragraph (6) of this section, including in respect of any permanent protective works a capitalised sum representing the increased or additional cost of maintaining and renewing such works:

Provided that if the cost of maintaining, working or renewing railway property is reduced in consequence of such protective works, a capitalised sum representing such saving may be set off against any sum payable by the Board to the railways board under this section;

(b) in respect of the employment of any inspectors, signalmen, watchmen and other persons whom it shall be reasonably necessary to appoint for inspecting, watching, lighting and signalling railway property and for preventing as far as may be all interference, obstruction, danger or accident arising from the construction, maintenance, repair or failure of the specified works;

(c) in respect of any special traffic working resulting from any speed restrictions which are necessary as a result of the construction, maintenance, repair or failure of the specified works and which may in the opinion of the engineer be required to be imposed or from the substitution or diversion of services which may be necessary for the same reason;

(d) in respect of any additional temporary lighting of railway property in the vicinity of the works, being lighting made reasonably necessary as a result of the specified works or the failure thereof:

- (13) If at any time after the completion of the specified works not being works vested in the railways board the railways board shall give notice to the Board informing them that the state of repair of the specified works appears to be such as to affect prejudicially railway property, the Board shall, within twenty-eight days of the receipt of such notice, take such steps (if any) as may be reasonably necessary to put the specified works in such state of repair as not to affect prejudicially railway property and, if and whenever the Board fail to do so, the railways board may make and do in and upon

PART IV
—cont.

the lands of the railways board or of the Board all such works and things as shall be requisite to put the specified works in such state of repair as aforesaid and the costs and expenses reasonably incurred by the railways board in doing such works as were reasonably necessary for such purpose shall be repaid to them by the Board:

- (14) All temporary structures, erections, works, apparatus and appliances erected or placed by the Board under the powers of section 11 (Power to execute temporary works on railways) of this Act upon, over or under any railway of the Board shall as soon as reasonably practicable be removed by the Board to the reasonable satisfaction of the engineer and in such a way as to cause as little damage to railway property and as little interference with, or interruption to, the traffic on the railways of the railways board as may be and if any damage to railway property or such interference, delay or interruption shall be caused by any such failure to remove any such temporary structures, erections, works, apparatus or appliances the Board shall forthwith make good such damage and pay to the railways board the reasonable costs and expenses to which they may be put and reasonable compensation for any loss which they may sustain by reason of such damage, interference, delay or interruption:
- (15) Before providing any illumination or illuminated road traffic sign on or in connection with the specified works or in the vicinity of railway property the Board shall consult with the railways board and comply with any reasonable requirements of the railways board in regard thereto with a view to ensuring that such illumination or illuminated sign could not be confused with any railway signal or other light used for controlling, directing or securing the safety of traffic on the railway:
- (16) Any additional expense which the railways board may reasonably incur, after giving twenty-eight days' notice to the Board, in reconstructing or maintaining railway property in pursuance of any powers existing at the passing of this Act by reason of the existence of the works shall be repaid by the Board to the railways board:
- (17) The Board shall be responsible for and make good to the railways board all costs, charges, damages and expenses not otherwise provided for in this section which may be occasioned to or reasonably incurred by the railways board—
 - (a) by reason of the specified works or the failure thereof; or

(b) by reason of any act or omission of the Board or of any persons in their employ or of their contractors or others whilst engaged upon the specified works;

and the Board shall effectively indemnify and hold harmless the railways board from and against all claims and demands arising out of or in connection with the specified works or any such failure, act or omission as aforesaid and the fact that any act or thing may have been done by the railways board on behalf of the Board or in accordance with plans approved by the engineer or in accordance with any requirement of the engineer or under his supervision shall not (if it was done without negligence on the part of the railways board or of any person in their employ or of their contractors or agents) excuse the Board from any liability under the provisions of this section:

Provided that the railways board shall give to the Board reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Board:

- (18) Any difference arising between the Board and the railways board under this section (other than a difference as to the meaning or construction of this section) shall be referred to and settled by arbitration.

37. The provisions of section 85 (For protection of British Transport Commission) of the Humber Bridge Act, 1959 (as applied to the Board by the Transport Act, 1962), shall not apply to any works authorised by this Act or carried out in pursuance thereof.

Saving for Humber Bridge Act, 1959.
1959 c. xlvii.
1962 c. 46.

38. For the protection of the conservancy board the following provisions shall, unless otherwise agreed in writing between the Board and the conservancy board, apply and have effect:—

For protection of Humber Conservancy Board.

- (1) In this section, unless the context otherwise requires, “authorised works” means Works Nos. 4 and 5, and any extension, enlargement, alteration, replacement or relaying thereof authorised by subsection (2) of section 8 (Power to make works) of this Act and any subsidiary work in connection therewith carried out below the level of high water under section 9 (Subsidiary works) of this Act:
- (2) Before commencing the construction of any part of the authorised works which will be situate on the foreshore or bed of the river Humber plans and sections showing the general mode of construction thereof shall be delivered

PART IV
—cont.

by the Board to the conservancy board for their reasonable approval, and such works shall not be constructed otherwise than in accordance with such plans and sections as may be approved by the conservancy board, or as may be settled by arbitration, and all such works shall be executed to the reasonable satisfaction of the conservancy board:

- (3) All temporary structures in the river Humber which may be necessary to enable the authorised works to be constructed shall be constructed to the reasonable satisfaction in all respects of the conservancy board in accordance with plans and sections to be previously submitted to and approved by the conservancy board or settled by arbitration and so as not to interfere more than may be necessary with the navigation of, or the traffic on, the river Humber, and after the purpose for which such temporary structures were constructed has been accomplished the Board shall, with all reasonable dispatch, and in any event within fourteen days of the service of notice in writing from the conservancy board requiring them so to do, remove any such temporary structures or any materials for the same which may have been placed in the river Humber by the Board, and on their failing so to do the conservancy board may remove the same, charging the Board with the reasonable expense of so doing, and the Board shall repay to the conservancy board all such expense:
- (4) In the event of the conservancy board omitting to express their disapproval of any plans or sections within two months after the same shall have been delivered to them in pursuance of this section, they shall be deemed to have approved the same:
- (5) (a) If, during the construction of the authorised works on the foreshore or bed of the river Humber or of any temporary structures in connection therewith respectively or within five years after the completion of such works or after the removal of such temporary structures and in consequence of the construction or execution of such works or temporary structures, any accumulation of silt or other material shall be created in the river Humber in the vicinity of such works which shall cause an impediment to the free navigation of the river Humber, the Board, if so requested by the conservancy board within the period of five years after such completion, shall remove such accumulation of silt or other material, and if they refuse or fail to do so the conservancy board may themselves cause the work to be done and may recover from the Board the reasonable cost thereof;

- (b) Should any such accumulation arise within the said period of five years and be removed in accordance with the provisions of sub-paragraph (a) of this paragraph, then any recurrence of such accumulation shall from time to time be removed as aforesaid during a period of ten years after the completion of the authorised works or the removal of such temporary structures, as the case may be:
- (6) From and after the commencement of the construction of the authorised works the Board shall afford to the conservancy board all such reasonable facilities as they may request to place and maintain at their expense on the authorised works any signals or other apparatus for the safety or benefit of navigation:
- (7) In relation to the authorised works the provisions of section 23 (Abatement of works abandoned or decayed), section 24 (Survey of tidal works) and section 26 (Lights on tidal works during construction) of this Act shall, with the necessary modifications, apply to the conservancy board as if the conservancy board were named therein in addition to the Board of Trade and any expenses incurred by the conservancy board in pursuance of any of the said sections shall be a debt due to them from the Board and may be recoverable summarily as a civil debt where the amount recoverable does not exceed twenty pounds, or in any civil court:

Provided that in the event of any inconsistency between any requirement or order of the Board of Trade and of the conservancy board the Board shall be deemed to have complied with the provisions of those sections if it has complied with the requirement or order of the Board of Trade:

- (8) Except as in this Act otherwise expressly provided, nothing in this Act shall prejudice or alter or be deemed to prejudice or alter any of the provisions of the Humber Conservancy Acts, 1852 to 1951, or any title of the conservancy board in, to or over any lands or foreshore held or acquired by them under the said Acts, or under any lease or agreement made under the powers thereof or confirmed thereby, or any other of the rights, powers, privileges or authorities of the conservancy board:
- (9) If there shall be any inconsistency between any plans or sections approved by the conservancy board or settled by arbitration under this section and the plans and sections approved by the Board of Trade under section 21 (Tidal works not to be executed without approval of

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Board of Trade) of this Act, the authorised works shall be executed in accordance with the plans and sections so approved by the Board of Trade:

- (10) Any difference arising between the Board and the conservancy board under this section (other than a difference as to the construction of this section) shall be settled by arbitration.

For protection
of Hampshire
River
Authority.

39. For the protection of the Hampshire River Authority (in this section referred to as “the authority”) the following provisions shall, unless otherwise agreed in writing between the Board and the authority, apply and have effect:—

- (1) In this section—

“authorised work” means Work No. 1 or Work No. 2 or any part of such works or any subsidiary work (including temporary works) carried out under the provisions of section 9 (Subsidiary works) of this Act which is on or in or will or may affect the bed or banks of the river or any work under the jurisdiction of the authority and any works carried out under the provisions of section 15 (Power to dredge at Southampton) of this Act and includes any such work as, or as proposed to be extended, altered, replaced or relaid under subsection (2) of section 8 (Power to make works) of this Act (whether permanently or temporarily);

“banks” has the meaning assigned to this expression by the Land Drainage Act, 1930;

“construct” includes execute, place, alter, replace, enlarge and relay and “constructed” and “construction” have corresponding meanings;

“plans” includes sections and specifications;

“the river” means the river Test:

- (2) Except with the consent of the authority which shall not be unreasonably withheld the Board shall not construct an authorised work in such a manner as to interrupt the free passage of water through or in the river or any other watercourse under the jurisdiction of the authority and without prejudice to the generality of the foregoing—

(a) an authorised work shall not be constructed so as at any point to reduce the width of so much of the channel of the river as lies between Work No. 1 and the southern edge of Work No. 2 to less than that shown on the deposited plans;

(b) if Work No. 1 is carried out in stages, the south-western corner of the first stage of that work shall be so designed and carried out as to minimise the obstruction to the flow of the river caused by that work;

(c) before commencing to carry out so much of Work No. 1 as affects either of the watercourses known as Luggy Creek and Tanner's Creek the Board shall to the reasonable satisfaction of the authority substitute for the watercourse a culvert or other reasonably suitable alternative provision for the purposes of land drainage and provide reasonable facilities for vehicular access by the authority thereto:

- (3) The powers of section 15 (Power to dredge at Southampton) shall not be exercised during the months of April and May except with the consent of the authority such consent not to be unreasonably withheld and any question as to whether or not it is unreasonably withheld shall be determined by the Minister of Agriculture, Fisheries and Food:
- (4) (a) Before commencing to construct an authorised work the Board shall submit to the authority for their reasonable approval plans thereof;
- (b) If within twenty-eight days after the submission to them of such plans, the authority do not signify in writing their disapproval thereof and the grounds of their disapproval they shall be deemed to have approved thereof:
- (5) (a) Subject to the provisions of this section an authorised work shall not be constructed otherwise than in accordance with such plans as may be approved or deemed to be approved by the authority as aforesaid or settled by arbitration;
- (b) The Board shall at all reasonable times afford to the engineer to the authority, or his duly authorised representative, access to an authorised work during the construction thereof for the purpose of inspection:
- (6) If there shall be any inconsistency between any plans approved or deemed to be approved by the authority or settled by arbitration under the provisions of this section and the plans approved by the Board of Trade under section 21 (Tidal works not to be executed without approval of Board of Trade) of this Act the authorised work shall be constructed in accordance with the plans approved by the Board of Trade:

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- (7) (a) In the construction of an authorised work the Board shall take all reasonable precautions to prevent the deposit from the authorised work of any solid matter in the river;
- (b) At any time during or after the construction of an authorised work, as and when they may be reasonably requested in writing to do so by the authority, the Board shall remove with all reasonable dispatch any accumulation of debris or other material which is caused by the construction of an authorised work or the existence of that work, and which interferes with the free flow of water in the river:
- (8) Except in case of emergency, the Board shall give not less than twenty-eight days' notice in writing to the authority before commencing to construct an authorised work:
- (9) If, by reason or in consequence of the construction of an authorised work or failure of such work, the channel or banks of the river shall at any time be damaged, such damage shall be made good by the Board to the reasonable satisfaction of the authority, and if within such reasonable time as may be required after receiving notice thereof the Board fail to make good such damage, the authority may make good the same and recover from the Board the costs and expenses reasonably incurred by them in so doing (including a proper proportion of the overhead expenses of the authority):
- (10) The Board shall indemnify and hold harmless the authority from all claims, demands or expenses which may be made on or against them or which they may have to pay by reason or in consequence of any injury or damage to the channel or banks of the river or by reason or in consequence of the impairment of the efficiency of the said banks which may be caused or result thereto by or in consequence of any operations carried out by the Board under the said section 15 of this Act or of the construction or maintenance of an authorised work or of the failure or want of repair thereof or in consequence of any act or omission of the Board, their contractors, agents, workmen or servants whilst engaged upon an authorised work:

Provided that the authority shall give to the Board reasonable notice of any such claim or demand as aforesaid and no settlement or compromise thereof shall be made without the agreement of the Board:

- (11) The fact that any work or thing has been executed or done in accordance with a plan approved, or deemed to be approved, by the authority or to their satisfaction, or in accordance with any directions or award of an arbitrator shall not relieve the Board from any liability under the provisions of paragraph (9) of this section:
- (12) Any difference arising between the Board and the authority under this section (other than a difference as to the construction of this section or as to whether or not a consent is unreasonably withheld under paragraph (3) of this section) shall be settled by arbitration.

40. For the protection of the harbour board the provisions of this section shall, unless otherwise agreed in writing between the Board and the harbour board, apply and have effect:— For protection of harbour board.

- (1) In this section—

“ authorised work ” means—

(a) any tidal works in connection with the Southampton works carried out under section 8 (Power to make works) or section 9 (Subsidiary works) of this Act;

(b) any work (other than maintenance) of deepening, dredging, scouring, cleansing, altering or improving the bed, shores and channels of the river or of blasting any rock, carried out under section 15 (Power to dredge at Southampton) of this Act;

“ plans ” includes sections;

“ the river ” means the river Test:

- (2) The Board shall, except in an emergency, before commencing an authorised work submit to the harbour board for their reasonable approval plans of such work showing the general mode of construction or carrying out thereof:

Provided that if the harbour board do not within twenty-eight days after the receipt of any such plans signify to the Board their disapproval thereof and the grounds of their disapproval they shall be deemed to have approved thereof:

- (3) Subject to the provisions of this section an authorised work shall not be constructed or carried out except in accordance with such plans as may be approved, or as are deemed to be approved by the harbour board, or if such approval be withheld as may be settled by—
- (i) in the case of an authorised work, as defined in sub-paragraph (a) of paragraph (1) of this section, the Board of Trade; and

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(ii) in the case of an authorised work, as defined in sub-paragraph (b) of paragraph (1) of this section, the Minister:

- (4) If there shall be any inconsistency between any plans approved or deemed to have been approved by the harbour board under this section and the plans approved by the Board of Trade under section 21 (Tidal works not to be executed without approval of Board of Trade) of this Act the authorised work shall be constructed in accordance with the plans approved by the Board of Trade:
- (5) (a) Before making any trial boring in the port pursuant to section 21 (Power to make trial borings) of the Act of 1964, as incorporated by section 28 (Incorporation of provisions of Act of 1964 relating to works) of this Act, the Board shall obtain the consent of the harbour board which consent shall not be unreasonably withheld;
- (b) In giving consent under this paragraph the harbour board may impose such reasonable conditions as they consider necessary:
- (6) The Board shall at all reasonable times afford to the duly authorised representative of the harbour board all reasonable facilities for inspecting an authorised work in the course of its construction or execution:
- (7) Notwithstanding anything in this Act or shown on the deposited plans, the Board shall not construct, alter or extend any part of Work No. 1 riverward of the line of Work No. 1 as shown on the deposited plans provided that for the purposes of this paragraph the said line of Work No. 1 shall be deemed to cross the entrances of the branch docks:
- (8) Where the Board carry out any deepening or dredging pursuant to the powers of this Act they shall maintain at all times the channel of the river as so deepened or dredged:
- (9) If, for the purpose of an authorised work, it becomes necessary to alter the position of any navigation buoy or mark in the port the harbour board shall carry out the alteration and any reasonable expenses incurred by the harbour board in carrying out any such alteration shall be repaid to the harbour board by the Board:
- (10) In relation to the Southampton works the provisions of section 23 (Abatement of works abandoned or decayed), section 24 (Survey of tidal works) and section 26 (Lights

on tidal works during construction) of this Act shall, with any necessary modifications, apply to the harbour board as if the harbour board were named therein in addition to the Board of Trade, and any reasonable expenses incurred by the harbour board in pursuance of any of the said sections shall be repaid to the harbour board by the Board:

Provided that in the event of any inconsistency between any requirement of the Board of Trade and of the harbour board the Board shall be deemed to have complied with the provisions of those sections if they have complied with the requirement of the Board of Trade:

- (11) Any difference arising between the Board and the harbour board under this section (other than a difference as to the construction of this section or as to the approval of plans under paragraph (3) or paragraph (4) of this section) shall be settled by arbitration.

41. Subject to the provisions of this Act the harbour board shall have and enjoy the same rights, privileges, jurisdiction and authority over the river Test as diverted and enlarged by Work No. 2 as they have and enjoy at the passing of this Act over the port, and the part of the river so diverted and enlarged shall form part of the port: For further protection of harbour board.

Provided that the harbour board shall not place or allow to be placed in any part of Work No. 2 any dolphin, mooring, buoy, jetty, slipway or other apparatus so as to interfere with or prejudice the Board or the movement of shipping to or from Work No. 1 and the branch docks and any difference between the Board and the harbour board under this proviso shall be referred to and determined by the Board of Trade.

42. For the protection of Ronald Scott Lawrance Bowker, Eric Nelson Knowles and Richard Henn Collins, trustees of a settlement of the Barker-Mill, Eling and Mill Estates, or others the owners for the time being of the whole or part of the Eling Estate and the Mill Estate in the county of Hampshire (all of whom are in this section referred to as "the owner") the following provisions shall, unless otherwise agreed in writing between the owner and the Board, apply and have effect:— For protection of Barker-Mill Estate.

- (1) In this section, unless the context otherwise requires—

"the protected lands" means so much of the lands and properties coloured pink on the signed plan as has not been acquired by the Board;

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“the signed plan” means the plan signed in duplicate by Henry Arnold Chapman on behalf of the Board, and Richard Henn Collins on behalf of the owner;

“the south bank” means so much of the new south bank (however the same may be formed or constructed) comprised in Work No. 2 as lies between the eastern boundary of the properties numbered 9 and 10 in the parish of Eling on the deposited plans and the eastern boundary of the property numbered 7 in the parish of Marchwood on the deposited plans:

- (2) The Board will so construct and thereafter maintain the south bank so as to leave not less than 20 feet between the northern edge of the protected lands and the top of the south bank and shall take all necessary steps to ensure the stability of the protected lands:
- (3) If at any time and from time to time after the commencement, during the construction and for a period of ten years after the completion of the south bank it shall be proved by the owner that any part of the protected lands has been injuriously affected or interfered with or damaged or rendered less valuable by flooding or erosion by reason or in consequence of—
 - (a) the construction or maintenance or failure of any part of the south bank; or
 - (b) the diversion by the Board of the river Test; or
 - (c) the dredging by the Board of the bed, shores or channels of the river Test; or
 - (d) the user by vessels of Work No. 1 or Work No. 2;

the Board shall pay to the owner in respect thereof such compensation in money as may be agreed or as shall be settled in case of difference by arbitration:

- (4) The Board will erect and maintain reference posts at or near the northern edge of the protected lands and will during the construction of the south bank, and once annually for a period of ten years thereafter, make a survey of the south bank at the level of high water by reference to the said reference posts, and submit a copy to the owner:
- (5) Prior to the construction of any part of Work No. 1 the Board will, in order to facilitate the passage of migratory fish, provide a channel having a width of not less than 500 feet and having a depth of at least 24 feet

below ordnance datum Newlyn in substitution for the corresponding part of the existing channel of the river Test which is being displaced:

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- (6) Any difference arising between the Board and the owner under this section shall be settled by arbitration.

43. For the protection of the company and the users from time to time of the company's berths the provisions of this section shall, unless otherwise agreed in writing between the Board and the company, apply and have effect:—

For protection of Burt, Boulton and Haywood, Limited and others.

- (1) In this section—

“the company” means Burt, Boulton and Haywood, Limited and their successors in title or other the owner or owners for the time being of the Totton site;

“the company's berths” means the berths immediately adjoining the company's wharves and includes the five mooring dolphins belonging to the company adjacent thereto;

“the company's wharves” means the wharves at the passing of this Act forming part of the Totton site;

“the signed plan” means the plan signed in duplicate by Henry Arnold Chapman on behalf of the Board and by Bruce Kilpatrick on behalf of Burt, Boulton and Haywood, Limited, one copy of which has been deposited with the Board and the other with Burt, Boulton and Haywood, Limited;

“the Totton site” means the lands in the parish of Eling in the rural district of New Forest comprised in the areas which are shown edged red on the signed plan;

“the works” means Works Nos. 1 and 2 and any extension, enlargement, alteration or replacement thereof under subsection (2) of section 8 (Power to make works) of this Act and any subsidiary works connected therewith constructed under section 9 (Subsidiary works) of this Act:

- (2) It shall be the duty of the Board, both during and after the construction of the works, to take such steps as will ensure that—

(a) the company's berths and the approaches thereto are not rendered less safe, efficient or convenient than they were immediately before the date on which the Board commence the execution of the works; and

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(b) the stability of the company's wharves, as existing immediately before the said date, is not adversely affected;

as a result of the construction or existence of the works or the exercise by the Board of the powers of section 15 (Power to dredge at Southampton) of this Act:

- (3) The Board shall be responsible for and make good to the company all costs, charges, damages, expenses and losses, which may be directly or indirectly occasioned to the company or the users of the company's berths by reason of any failure on the part of the Board to comply with the provisions of paragraph (2) of this section, and the Board shall effectually indemnify the company and such users against all claims, demands, proceedings, costs, damages and expenses which may be made or taken against or recovered from or incurred by the company or such users by reason of such failure:

Provided that the company and such users shall give to the Board reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Board.

For protection
of certain
statutory
undertakers.

44. For the protection of the undertakers the following provisions shall, unless otherwise agreed in writing between the Board and the undertakers concerned, apply and have effect:—

- (1) In this section, unless the subject or context otherwise requires—

“adequate alternative apparatus” means alternative apparatus adequate to enable the undertakers to fulfil their statutory functions in a manner not less efficient than previously;

“apparatus” means—

(a) electric lines and works (as respectively defined in the Electric Lighting Act, 1882) belonging to or maintained by the Central Electricity Generating Board, the Eastern Electricity Board or the Southern Electricity Board;

(b) mains, pipes or other apparatus belonging to or maintained by the Southern Gas Board;

and includes any works constructed for the lodging therein of apparatus;

“authorised work” means any work carried out or thing done under the powers of section 8 (Power to make works) or section 9 (Subsidiary works) of this Act in the city and county of Southampton, or the counties of Hampshire or East Suffolk;

“ in ” in a context referring to apparatus includes under, over, across, along or upon;

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“ operational land ” has the same meaning as in section 221 of the Town and Country Planning Act, 1962 c. 46. 1962;

“ position ” includes depth;

“ the undertakers ” means the Central Electricity Generating Board, the Southern Electricity Board, the Eastern Electricity Board and the Southern Gas Board, or any of them, and in relation to any apparatus means the undertakers to whom the apparatus belongs or by whom the apparatus is maintained:

- (2) Notwithstanding anything in this Act or shown on the deposited plans, the Board shall not under the powers of this Act acquire any apparatus otherwise than by agreement:
- (3) Notwithstanding anything in this Act, no apparatus shall be removed from any land or highway in which it is situated, nor shall any right of the undertakers to use, maintain, repair, renew or inspect any apparatus in that land or highway be extinguished, until any necessary adequate alternative apparatus has been provided and is in operation to the reasonable satisfaction of the undertakers:
- (4) (a) The Board, for the purpose of the construction of any authorised work, may require the undertakers to remove any apparatus. If the Board require the undertakers to remove such apparatus they shall give to the undertakers written notice of such requirement with a plan and section of the proposed work and of the proposed position of the alternative apparatus to be laid down or erected so as to provide adequate alternative apparatus in lieu of the apparatus to be removed;
- (b) If the Board require the undertakers to remove any apparatus, or if in consequence of the construction or carrying out of an authorised work the undertakers shall reasonably require to remove any apparatus, the Board shall, if practicable, afford to the undertakers the necessary facilities and rights for the laying down or erection of such alternative apparatus in other lands of the Board, and thereafter for the maintenance, repair, renewal and inspection of such apparatus:

Provided that if the alternative apparatus or any part thereof is to be laid down or erected elsewhere than in other lands of the Board and the Board are unable to

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afford such facilities and rights as aforesaid in the lands in which the alternative apparatus or such part thereof is to be laid down or erected the undertakers shall on receipt of a written notice to that effect from the Board forthwith use their best endeavours to obtain the necessary facilities and rights in such last-mentioned lands:

- (5) (a) Any alternative apparatus to be laid down or erected in lands of the Board in pursuance of paragraph (4) of this section shall be laid down or erected in such manner and in such line or situation as may be agreed between the undertakers and the Board or in default of agreement settled by arbitration;
- (b) The undertakers shall after the line or situation of any necessary alternative apparatus and manner in which the alternative apparatus shall be laid down or erected has been agreed or settled by arbitration as aforesaid and after the grant to the undertakers of any such facilities and rights as are referred to in paragraph (4) of this section proceed with all reasonable dispatch to lay down or erect and bring into operation the alternative apparatus and thereafter to remove any apparatus required by the Board to be removed under the provisions of this section and in default the Board may remove the apparatus:
- (6) Notwithstanding anything in the immediately preceding paragraph if the Board give notice in writing to the undertakers that they desire themselves to execute any part of so much of the work necessary in connection with the laying down or erection of the alternative apparatus or the removal of the apparatus required to be removed as will be situate in any lands of the Board, such work, in lieu of being executed by the undertakers, shall be executed by the Board with all reasonable dispatch under the superintendence (if given) and to the reasonable satisfaction of the undertakers:

Provided that nothing in this paragraph shall authorise the Board to execute the actual placing, installation, bedding, packing, removal, connection or disconnection of any apparatus or any filling around the apparatus extending (where the apparatus is laid in a trench) within 12 inches above the apparatus:

- (7) Where in accordance with the provisions of this section the Board afford to the undertakers facilities and rights for the laying down or erection, maintenance, repair, renewal and inspection in lands of the Board of alternative apparatus in substitution for apparatus to be removed as aforesaid those facilities and rights shall be

granted upon such terms and conditions as may be agreed between the Board and the undertakers or in default of agreement determined by arbitration:

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Provided that in determining such terms and conditions as aforesaid in respect of alternative apparatus to be laid down or erected across or through an authorised work the arbitrator shall—

(a) give effect to all reasonable requirements of the Board for ensuring the safety and effective use of the authorised work and for securing any subsequent alterations or adaptations of the alternative apparatus which may be required to prevent interference with any such work;

(b) give effect to all reasonable requirements of the undertakers for ensuring the safety and effective use of the alternative apparatus; and

(c) so far as it may be reasonable and practicable to do so in the circumstances of the particular case give effect to the terms and conditions applicable to the apparatus (if any) laid down or erected through the lands of the Board for which the alternative apparatus is to be substituted:

Provided also that if the facilities and rights to be afforded by the Board in respect of any alternative apparatus and the terms and conditions subject to which the same are to be granted are, in the opinion of the arbitrator, more or less favourable on the whole to the undertakers than the facilities, rights, terms and conditions applying to the apparatus to be removed, the arbitrator shall make such provision for the payment of compensation to or by the Board by or to the undertakers in respect thereof as shall appear to him to be reasonable having regard to all the circumstances of the particular case:

- (8) (a) Not less than twenty-eight days before commencing to execute an authorised work which is near to or is likely to affect any apparatus the removal of which has not been required by the Board under paragraph (4) of this section, the Board shall submit to the undertakers a plan, section and description of the work to be executed;
- (b) Such work shall be executed substantially in accordance with the plan, section and description submitted as aforesaid and in accordance with such reasonable requirements as may be made by the undertakers for the alteration or otherwise for the protection of the apparatus

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or for securing access thereto, and the undertakers shall be entitled by their officer to watch and inspect the execution of such work:

Provided that if the undertakers within fourteen days after the submission to them of any such plan, section and description shall in consequence of the work proposed by the Board reasonably require the removal of any apparatus and give written notice to the Board of such requirement, the foregoing provisions of this section shall apply and have effect as if the removal of such apparatus had been required by the Board under paragraph (4) thereof:

Provided also that nothing in this sub-paragraph shall preclude the Board from submitting at any time or from time to time, but in no case less than twenty-eight days before commencing the execution of any such work, a new plan, section and description in lieu of the plan, section and description previously submitted, and thereupon the provisions of this paragraph shall apply to and in respect of such new plan, section and description;

- (c) The Board shall not be required to comply with sub-paragraph (a) of this paragraph in a case of emergency, but in such a case they shall give to the undertakers notice as soon as reasonably practicable and a plan, section and description of the work as soon as reasonably practicable thereafter and shall comply with sub-paragraph (b) of this paragraph so far as reasonably practicable in the circumstances:
- (9) Subject to the provisions of the next succeeding paragraph the Board shall repay to the undertakers the reasonable expenses incurred by the undertakers in or in connection with—

(a) the removal and relaying or replacing of any apparatus and the provision, laying down, erection or placing of any new apparatus, and the alteration or protection of any apparatus under the foregoing provisions of this section less the value of any apparatus removed in pursuance of the provisions of this section (such value being calculated after removal);

(b) the subsequent alteration or adaptation of apparatus required under the provisions of proviso (a) to paragraph (7) of this section;

(c) the cutting off of any apparatus from any other apparatus; and

(d) any other work or thing rendered reasonably necessary in consequence of any such operations as are referred to in this paragraph:

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Provided that—

(i) if the undertakers provide, lay down, erect or place apparatus of better type or of greater capacity or at a greater depth than the existing apparatus and the provision of apparatus of that type or capacity or the placing of apparatus at that depth, as the case may be, had not been agreed or settled by arbitration under this section to be reasonably necessary by reason or in consequence of the exercise by the Board of any of their powers under this Act, the undertakers shall bear such proportion of the cost of such provision, laying down, erection or placing as represents the amount by which such cost exceeds the cost which would have been incurred if the type or capacity or depth of the apparatus so provided, laid down, erected or placed had been the same as that of the existing apparatus;

(ii) any amount payable by the Board to the undertakers under this paragraph in respect of the provision, laying down, erection or placing of new apparatus in substitution for apparatus provided, laid down, erected or placed more than seven-and-a-half years earlier shall be reduced by the amount of any financial benefit which may be derived by the undertakers from the deferment of the time for the renewal of the apparatus in the ordinary course:

(10) If it shall be necessary for the Board to require the removal of any part or parts of—

(a) the overhead 132/400 kV. electric power line between Marchwood, Millbrook and Nursling; or

(b) the overhead 400 kV. electric power line between Fawley and Nursling;

in the county of Hampshire which are at the date of the passing of this Act in the course of construction or about to be constructed by the Central Electricity Generating Board, and are or will be within the limits of deviation for the Southampton works, an amount not exceeding one-half of the total reasonable expenses incurred by the Central Electricity Generating Board of such removal and any re-erection that may be necessary shall, subject to a maximum payment of one hundred and ninety thousand pounds, be repaid by the Board to the Central Electricity Generating Board:

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- (11) The Board shall make compensation to the undertakers for any damage caused to any apparatus (other than apparatus the repair of which is not reasonably necessary in view of its intended removal in accordance with the provisions of this section) by reason or in consequence of the exercise by the Board of the powers of this Act:

Provided that nothing in this paragraph shall impose any liability on the Board with respect to any damage which may be attributable to the act, neglect or default of the undertakers, their contractors or workmen:

- (12) Notwithstanding the stopping up temporarily or permanently of any bridleway, footpath, jetty or hard or any portion of any bridleway, footpath, jetty or hard under the powers of section 13 (Power to Board to stop up bridleway, footpath, hard, etc.) of this Act, the undertakers, their engineers or workmen and others in their employ shall at all times be at liberty to execute or do all such works and things in, upon or under such bridleway, footpath, jetty or hard or portion thereof as may be reasonably necessary for inspecting, repairing, maintaining, renewing or removing any apparatus:
- (13) Where by reason or in consequence of the stopping up of any bridleway, footpath, jetty or hard, or any portion of a bridleway, footpath, jetty or hard under the powers of this Act, any apparatus for which alternative apparatus is not substituted under this section is rendered derelict or unnecessary, the Board shall pay to the undertakers the then value of such apparatus (which shall thereupon become the property of the Board) and the reasonable cost of and incidental to the cutting off of such apparatus from any other apparatus and of and incidental to the execution or doing of any works or things rendered necessary or expedient by reason of or in consequence of such apparatus being so rendered derelict or unnecessary:
- (14) (a) In the exercise of the powers of deepening, dredging, scouring, cleansing, altering, improving and blasting under section 15 (Power to dredge at Southampton) or section 16 (Power to dredge at Lowestoft) of this Act the Board shall not interfere with, damage or injuriously affect any apparatus;
- (b) Before exercising the said powers within a distance of fifty yards of any submarine apparatus the Board shall give in writing to the undertakers as long notice as possible and in any case not less than twenty-eight days' notice of their intention so to do;

(c) Any material dredged up or removed in pursuance of the said powers shall not be laid down or deposited in such a place or manner as to cover any apparatus or in any way obstruct or impede any work of or connected with the inspection or repair of such apparatus:

(15) Nothing in this section shall be deemed to prejudice or affect the provisions of any enactment or agreement regulating the relations between the Board and the undertakers in respect of any apparatus laid or erected in land belonging to the Board at the date of the passing of this Act:

(16) (a) Any difference which may arise between the Board and the undertakers under this section other than any difference as to the meaning or construction of this section shall be settled by arbitration;

(b) In settling any difference under this section the arbitrator may, if he thinks fit, require the Board to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the apparatus is used.

45. Nothing in section 22 (Provision against danger to navigation) or section 25 (Permanent lights on tidal works) of this Act shall prejudice or derogate from any of the rights or privileges, or the jurisdiction or authority, of Trinity House.

46. Notwithstanding anything in this Act the powers of section 36 (Proper maintenance of waste land, etc.) of the Town and Country Planning Act, 1962, shall be exercisable in relation to so much of the foreshore and bed of the river Test as has been reclaimed under the powers of this Act and has not been otherwise developed and for that purpose—

(a) any land so reclaimed and not otherwise developed shall be deemed to be land to which that section applies; and

(b) paragraph (c) of subsection (1) of section 57 of the said Act of 1962 shall not apply to an appeal against a notice served under the said section 36 in relation to such land:

Provided that before serving a notice under the said section 36 the local planning authority shall consult with the Board with regard to any injury to any amenity and if within two months or such longer period as may be agreed between the Board and the local planning authority the Board shall either deny that there is any such injury or fail to put forward proposals acceptable to the local planning authority to abate the injury, the local planning authority may serve a notice under section 36.

Application of section 36 of Town and Country Planning Act, 1962, to land reclaimed from river Test.
1962 c. 46.

PART IV
—cont.

Restrictions on
development
of South-
ampton
works.
1962 c. 46.
1964 c. 40.

47.—(1) Notwithstanding anything in the Town and Country Planning Act, 1962, or in any order made under that Act no development to which this section applies within the limits of deviation in respect of the Southampton works shown on the deposited plans (not being development carried out for the purposes of or in connection with harbour operations (within the meaning of the Harbours Act 1964)) shall be deemed to be permitted development.

(2) The development to which this section applies is—

- (a) the erection of an industrial building; or
- (b) the alteration of a building so that it becomes an industrial building; or
- (c) a change of user of a building from a user that was not that of an industrial building to that of an industrial building.

(3) In this section words and expressions to which meanings are assigned by the Town and Country Planning Act, 1962, shall have the same respective meanings.

Saving for
town and
country
planning.

48. The provisions of the Town and Country Planning Act, 1962, and any restrictions or powers thereby imposed or conferred in relation to land shall apply and may be exercised in relation to any land notwithstanding that the development thereof is, or may be, authorised or regulated by or under this Act.

PART V

MISCELLANEOUS AND GENERAL

Power to
lease, etc.,
warehouses,
etc.

49. Notwithstanding anything in this or any other enactment, but without prejudice to section 48 (Saving for town and country planning) of this Act, the Board may lease or grant the use or occupation of or any easement, servitude or other right or interest in or over any lands, docks, quays, wharves, jetties, piers, berths, floats, slipways, yards, warehouses, buildings, sheds, landing stages, tips, staithes, cranes, pipeways, machinery, equipment or other works and conveniences forming part of any of the Board's harbours for such period or periods, at such rents and considerations and on such terms and conditions as shall be agreed between the Board and the authority, body, company or persons taking the same.

Power to
appropriate
lands and
works for
particular
trades, etc.

50.—(1) Notwithstanding anything in this or any other enactment but without prejudice to section 48 (Saving for town and country planning) of this Act the Board may from time to time set apart and appropriate any lands, docks, quays, wharves, jetties, piers, berths, floats, slipways, yards, warehouses, buildings, sheds,

landing stages, tips, staithes, cranes, pipeways, machinery, equipment, works and conveniences forming part of any of the Board's harbours for the exclusive, partial or preferential use and accommodation of any particular trade, authority, body, company, person, vessel or class of vessels or goods subject to the payment of such rents and subject to such terms, conditions and regulations as the Board may think fit.

PART V
—cont.

(2) No authority, body, company, person or vessel shall make use of any lands, docks, quays, wharves, jetties, piers, berths, floats, slipways, yards, warehouses, buildings, sheds, landing stages, tips, staithes, cranes, pipeways, machinery, equipment, works and conveniences so set apart or appropriated without the consent of the harbour master or dock master, as the case may be, of the Board and the harbour master or dock master, as the case may be, may order any person or vessel making use thereof without such consent to be removed and the provisions of section 58 of the Act of 1847, shall extend and apply *mutatis mutandis* to and in relation to any such vessel.

51.—(1) Section 26 (For protection of Southampton Corporation) of the Southern Railway Act, 1927, shall have effect as if in paragraph (13) the words from and including “and (b)” to the end of the paragraph were omitted.

Amendment of section 26 (13) of Southern Railway Act, 1927, and amendment of agreement of 10th July, 1933. 1927 c. xxiii.

(2) The agreement made the 10th July, 1933, between the Southern Railway Company of the one part and the mayor, aldermen and burgesses of the borough of Southampton of the other part shall have effect as if paragraphs (a) and (c) of sub-clause (i) of clause 1 and sub-clauses (ii) and (iii) of clause 1 were omitted.

52. Anything required or authorised by or under this Act to be done by, to or before the Board of Trade may be done by, to or before the President of the Board of Trade, any Minister of State with duties concerning the affairs of the Board of Trade, any secretary, under-secretary or assistant secretary of the Board of Trade or any person authorised in that behalf by the President.

As to powers of Board of Trade.

53. Nothing in this Act shall be taken as exempting the Board from the provisions of sections 9 and 10 of the Harbours Act 1964 in relation to the works.

Saving for Harbours Act 1964. 1964 c. 40.

54. Where under this Act any difference (other than a difference to which the provisions of the Lands Clauses Acts apply) is to be referred to or settled by arbitration, then, unless otherwise provided, such difference shall be referred to and settled by a single arbitrator to be agreed between the parties or, failing

Arbitration.

PART V
—*cont.*

agreement, to be appointed, on the application of either party (after notice in writing to the other), by the President of the Institution of Civil Engineers.

Costs of Act.

55. All costs, charges and expenses of and incident to the preparing for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the Board and may in whole or in part be defrayed out of revenue.

SCHEDULES

SCHEDULE 1

Section 3.

AGREEMENT BETWEEN THE BRITISH TRANSPORT DOCKS BOARD AND THE MAYOR, ALDERMEN AND CITIZENS OF THE CITY OF SOUTHAMPTON

THIS AGREEMENT is made the thirteenth day of July one thousand nine hundred and sixty-six Between THE BRITISH TRANSPORT DOCKS BOARD (hereinafter called "the Board") of the one part and THE MAYOR ALDERMEN AND CITIZENS OF THE CITY OF SOUTHAMPTON (hereinafter called "the Corporation") of the other part

WHEREAS:—

(1) The Board are promoting a Bill (hereinafter called "the Bill") in Parliament in the Session 1966-67 empowering them to acquire lands forming the shore and bed of the River Test in the City of Southampton and to construct works.

(2) The acquisition and construction aforesaid will have (inter alia) the following effects:—

(a) to prevent the use of the sailing and canoeing base situated at Millbrook Point in the said City and to deprive the public of access to the foreshore and the use of the public hard at Millbrook Point;

(b) to reduce the area of water available for use for recreational purposes;

(c) in due course to prevent any use of Redbridge Point in the said City for sailing and canoeing purposes.

(3) The parties hereto have agreed that the Corporation will—

(a) when so requested by the Board terminate the use of the said sailing and canoeing base at Millbrook Point and provide temporary sailing and canoeing facilities in the vicinity of Redbridge Point aforesaid for the users of the said sailing and canoeing base at Millbrook Point;

(b) when in due course the said facilities at Redbridge Point are required to be displaced in order to make way for dock development, provide at the Corporation's expense alternative facilities for the users of facilities so displaced.

(4) The Corporation have agreed to refrain from all further opposition to the Bill in consideration (inter alia) of the agreement hereinafter appearing.

NOW THIS AGREEMENT WITNESSES as follows:—

1. The Board hereby covenant as follows :—

(a) As soon as the Bill shall have received the Royal Assent and the Board shall have been granted an authorisation

SCH. 1
—cont.
1964 c. 40.

under Section 9 of the Harbours Act 1964 in respect of the works at Southampton or any part of such works for which powers are sought in the Bill to pay to the Corporation the sum of seventy thousand pounds;

(b) As from the date hereof to grant unto the Corporation leave and licence—

(i) to establish a base for sailing and canoeing (hereinafter called “the base”) on the land situated at Redbridge Point in the said City having an area of 7.4 acres or thereabouts and delineated and edged red on the plan attached hereto and signed by Henry Arnold Chapman on behalf of the Board and by Alfred Norman Schofield on behalf of the Corporation,

(ii) to construct and use such buildings and structures including a hard at the base as the Corporation shall deem necessary,

(iii) to have access to the base on foot and by vehicle between a point on the boundary of the Board’s property and the base by an access to be agreed between the Board and the Corporation,

(iv) to have such access over the Board’s property for the supply of electricity, water and other services to the base as may from time to time be agreed, and

(v) to undertake such further works at the base or in connection with the said accesses as the Corporation shall deem necessary;

all upon the following terms and conditions:—

A. The licence fee shall be the sum of one shilling per annum if demanded.

B. The licence shall be determined by either side giving to the other six months’ previous written notice expiring at any time between the months of October and March in any year and such notice shall not be given by the Board until the land upon which the base is situated or the water adjacent to it is required by the Board (as to which the Board shall be the sole judge) for the purposes of their docks undertaking at Southampton.

C. The Corporation shall be entirely responsible for the management and control of the base and such of the land access thereto as has not been constructed by the Board and shall hold the Board harmless and indemnified in respect of all damages, costs, losses, claims and expenses to any person or property whatsoever which may arise directly or indirectly or be in anywise connected with the user of the base and any access thereto.

SCH. 1
~~cont.~~

D. The Corporation shall be responsible for all rates taxes and outgoings in respect of the base and any buildings and structures thereon including the hard and for obtaining all necessary consents in respect of the same and for the necessary construction or provision of the accesses (other than Work No. 3) referred to in sub-paragraphs 1 (b) (iii) and (iv) of this Agreement.

E. On determination of the licence the Corporation shall clear the base of all buildings and structures, except the hard, together with any services provided by them and shall leave the base clean and tidy to the Board's reasonable satisfaction.

F. Before constructing a hard at the base the Corporation shall consult with the Board as to its construction.

G. On determination of the licence the Corporation shall remove the hard or such part or parts thereof as the Board may reasonably require.

2. The Corporation hereby covenant as follows:—

- (a) The Corporation will within three months (or such longer period as may be agreed) from the date of receiving from the Board the said sum of seventy thousand pounds terminate the use of the said sailing and canoeing base at Millbrook Point aforesaid and establish the base at Redbridge Point in the said City;
- (b) Upon the termination by the Board of any licence granted pursuant to clause 1 of this Agreement to provide or arrange for the provision of sailing and canoeing facilities for the users of the base at Redbridge Point at the time of such termination at an alternative site or sites to be provided by the Corporation at their own expense;
- (c) The Corporation will hold the Board free from all liability in respect of the matters referred to in recitals (2) and (3) of this Agreement and will indemnify the Board against any claims made by third parties in respect of such matters.

3. It is hereby agreed between the parties hereto as follows:—

- (a) The Corporation shall permit such persons or bodies to use the base as they shall deem appropriate but shall not permit any permanent public right to be established;
- (b) Any dispute between the parties hereto as to the terms of this Agreement shall be made subject to decision of a single arbitrator appointed by the parties or in default of their agreement by the President for the time being of the Royal Institution of Chartered Surveyors and such arbitration shall otherwise be in accordance with the Arbitration Act 1950 1950 c. 27. or any statutory amendment thereof;
- (c) The stamp duty on this Agreement and its duplicate shall be shared equally between the parties hereto.

SCH. 1
—*cont.*

4. This Agreement shall be scheduled to the Bill and is subject to such alterations as may be made by Parliament therein but in the event of Parliament making any material alteration in this Agreement or in the provisions of the Bill relating thereto either party to this Agreement may as soon as practicable give written notice to the other to rescind this Agreement which shall then become void.

IN WITNESS whereof the respective Corporate Seals of the parties hereto were hereunto affixed the day and year first above written.

THE COMMON SEAL of The British Transport
Docks Board was hereunto affixed in the
presence of:—

S. A. FINNIS,
Member.

H. A. CHAPMAN,
Secretary.

THE CORPORATE SEAL of The Mayor,
Aldermen and Citizens of the City of
Southampton was hereunto affixed by
Order of the Council in the presence of:—

S. M. G. MITCHELL,
Mayor.

A. NORMAN SCHOFIELD,
Town Clerk.

SCHEDULE 2

Section 3.

AGREEMENT BETWEEN BRITISH TRANSPORT DOCKS BOARD AND
LIQUEFIED PRESSURE GASES ANCILLARY SERVICES LIMITED

1. DATE

29th June, 1966.

2. PARTIES

(1) The British Transport Docks Board.

(2) Liquefied Pressure Gases Ancillary Services Limited whose registered office is at 36 Higham Road Rushden Northamptonshire.

3. DEFINITIONS

In this Agreement where the context so admits the following expressions bear the following meanings:—

“ the Board ” means the British Transport Docks Board

“ the Company ” means Liquefied Pressure Gases Ancillary Services Limited its successors and assigns

“ the Bill ” means the British Transport Docks Bill 1966 now pending in Parliament

“ the Works ” means the works on the Company’s land more particularly described in the Schedule hereto

“ the Company’s land ” means the leasehold land of the Company known as Millbrook Filling Station Southampton comprised in and demised by a Lease dated the 2nd day of February 1955 and made between the Mayor Aldermen and Burgesses of the County Borough of Southampton of the one part and Calor Gas (Distributing) Company Limited of the other part

“ the signed plan ” means the plan signed in duplicate by Henry Arnold Chapman on behalf of the Board and by Michael Lawrence Kirby on behalf of the Company one copy of which has been deposited in the offices of the Board and one copy in the offices of the Company

“ the underpass ” means the underpass to be erected as part of the Works including approach ramps.

4. INTRODUCTORY PART

(1) The Board is the promoter of the Bill which if enacted would among other things empower the Board to construct a bridge and road-works (Work No. 3 in the Bill) over the railway between Redbridge and Millbrook Stations and for that purpose to enter upon take and use part of the Company’s land effectively cutting the Company’s land into two.

(2) The Company petitioned the House of Commons against the Bill but at the request of the Board withdrew its petition on the 18th April 1966.

(3) The Company intends to present a Petition to the House of Lords against the Bill unless provision is made for its protection.

SCH. 2
—cont.

5. OPERATIVE PART

(1) The Board undertakes with the Company for the benefit of the Company's land property interest and estate:—

- (a) to procure that the Works will be commenced forthwith upon entry by the Board on the Company's land pursuant to the Bill and that the underpass and all of the Works lying outside the permanent boundary hereinafter mentioned will be carried out with all reasonable despatch thereafter causing as little disturbance as reasonably practicable and to the reasonable satisfaction of the Company's surveyor
- (b) to erect maintain and dismantle the temporary fence as mentioned in Clause 5 (II) (b) below
- (c) during the construction of the Works to provide reasonable temporary means of access across or around the Works for the passage of the vehicles and employees of the Company and all other persons and vehicles duly authorised by the Company
- (d) to observe and rigidly enforce any safety regulations that may reasonably be made by the Company in connection with the Works and to see that all persons concerned therewith have full notice of such regulations and in particular any regulations relating to smoking and the use of naked flames in the proximity of the Company's premises
- (e) to ensure that no plant or machinery employed in the execution of the Works shall constitute a hazard to the Company's property or any part thereof
- (f) to pay to the Company upon completion of the Works:—
 - (i) £100 to cover the future cost to the Company of maintaining the roads retaining walls and parapets on the Company's land leading to the underpass and the road within the underpass
 - (ii) £100 to cover the future running costs replacement and maintenance of the lighting in the underpass
- (g) forever after the Works shall have been completed to maintain in good and substantial repair the complete structure of the underpass other than the road within the underpass
- (h) if and when the subsoil of the underpass shall be vested in the Board to grant to the Company and to its landlords a perpetual right of way through and along the underpass at all times with or without vehicles for all the purposes of the remainder of the Company's land
- (i) not to exercise any powers of acquisition granted under the Bill so as to acquire more of the Company's land than is enclosed within the permanent boundaries shown marked in red and green on the signed plan and coloured pink thereon
- (j) to pay to the Company the additional insurance premium or premiums that the Company may be called upon to pay in respect of the extension of the cover referred to in paragraph (II) (d) of this Clause.

SCH. 2
—cont.

(II) The Company undertakes with the Board—

- (a) not to oppose the Bill further in Parliament
- (b) upon the enactment of the Bill to permit the Board their servants or agents during the construction of the Works free access to the Company's land with or without vehicles within the limits shown on the signed plan by a heavy broken black line the Board erecting forthwith upon the entry by the Board on the Company's land pursuant to the Bill a secure solid 6 foot high temporary fence along the entire length of the said limits to the reasonable satisfaction of the Company's surveyor as aforesaid and removing the same upon completion of the Works making good any damage
- (c) to permit the Board their servants or agents further access over the remainder of the Company's land for the purpose only of constructing the roads retaining walls and parapets leading to the underpass in accordance with the reasonable directions from time to time given by the Company or its Surveyor to the Board
- (d) to use its best endeavours to arrange that the existing insurance of its premises and property at Millbrook shall be extended to include all destruction damage or loss to the Company its servants and agents of whatever nature that may be directly or indirectly caused by reason of the execution of the Works.

(III) Nothing contained in this Agreement shall in any way affect or restrict any right of the Company to compensation for anything done or not done by the Board or any other person pursuant to the Bill this Agreement or otherwise.

(IV) This Agreement shall be scheduled to the Bill and is subject to such alterations as may be made by Parliament therein but in the event of Parliament making any material alteration in this Agreement or in the provisions of the Bill relating thereto either party to this Agreement may as soon as practicable give written notice to the other to rescind this Agreement which shall then become void.

(V) Any dispute difference or question concerning the construction of this Agreement or the rights and liabilities of the parties hereunder shall be referred to the arbitration of some person to be agreed between the parties or in default of agreement some person to be nominated by the President for the time being of the Institute of Civil Engineers in accordance with and subject to the provisions of the Arbitration Act 1950, and any statutory modification or re-enactment thereof for 1950 c. 27. the time being in force.

THE SCHEDULE

The provision on land at present comprised in the Company's land of the following to the best standards of modern design and construction in accordance with the outlines shown in red on the signed plan:—

- (1) A bridge approach ramp with retaining walls.
- (2) An underpass 26 feet wide within the structure with 16 feet clear headroom.

SCH. 2
—*cont.*

- (3) Concrete paving to the underpass and to the roads leading thereto designed in accordance with M.o.T.'s Road Note 29 (HMSO 1965).
- (4) Retaining walls and parapets to the approach ramps of the underpass together with lighting by 65 watt fluorescent tubes throughout the length of the underpass structure and drainage throughout the length of the underpass.
- (5) Solid parapets not less than 6 feet high on top of the retaining walls along the lines of the said permanent boundaries marked in red on the signed plan.

THE COMMON SEAL of the British Transport
Docks Board was hereunto affixed in the
presence of:—

S. A. FINNIS,
Member.

H. A. CHAPMAN,
Secretary.

THE COMMON SEAL of Liquefied Pressure
Gases Ancillary Services Limited was
hereunto affixed in the presence of:—

E. D. PECK,
Director.

M. L. KIRBY,
Secretary.

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British Transport Docks Act 1966

CHAPTER xxxi

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Schedule 2—Agreement between British Transport Docks Board and Liquefied Pressure Gases Ancillary Services Limited.